

 Department of Children & Family Services <i>Building a Stronger Louisiana</i>	Division/Section	Family Support
	Chapter No./Name	04 – Family Assistance Manual (FAM)
	Part No./Name	B – Eligibility Factors
	Section No./Name	B-1200-FITAP Support Enforcement Services
	Document No./Name	B-1250-FITAP Noncooperation With Child Support Enforcement
	Effective Date	February 1, 2018

I. STATEMENT OF POLICY

If an applicant or recipient does not cooperate and does not have good cause, the client or the child (ren) will not be eligible for cash assistance.

B-1251-FITAP - PO NONCOOPERATION

CSE will notify IV-A daily through the LAMI/LASES interface via Infopac Report LAIN21P if the client fails to cooperate with CSE by:

- failure to keep two scheduled office appointments (Code S1),
- failure to appear for a blood test (Code S2),
- failure to appear in court (Code S3),
- failure to provide information during an interview (Code S4), or
- refusal to name the noncustodial parent (Code S5).

The report is coded as shown above to show the reason for the client's noncooperation.

B-1252-FITAP - PO FAILURE TO SUBMIT CHILD SUPPORT PAYMENTS TO CSE

When CSE determines that a client failed to submit child support payments to CSE, the case will be referred to the Fraud and Recovery Section. The Fraud and Recovery Section will contact the client and request repayment. If the client refuses to sign a repayment agreement or fails to submit agreed-upon payments, the Fraud and Recovery Section will notify the worker by form FR 64.

Note: Any child support received for FITAP two-parent households must be budgeted. If the two-parent household is placed in Simplified Reporting, refer to [S-310-FITAP](#) for reporting requirements. Refer to [F-110-FITAP](#) for overpayment/overissuances.

B-1253-FITAP - PO REAPPLICATION FOLLOWING CASE CLOSURE ***

Once a case has been closed for failure to cooperate with CSE:

- If the family is not work-eligible, the family may not be recertified until the client misses at least one month of benefits and goes to the CSE office and agrees to cooperate.
- If the family is work-eligible, the family must not receive benefits for the number of months required by the terms of the applicable STEP sanction and the client goes to the CSE office and agrees to cooperate.

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* If a case was closed for a reason other than CSE non-compliance and the client failed to comply during a month of receipt of cash assistance, the family may not be recertified until the client goes to the CSE office and agrees to cooperate.

Example: Client's case closes on November 16th for failure to timely reapply. LAIN21P is received on November 29th advising that the client did not cooperate on November 21th. Even though the date of noncompliance was after the case closed, the client received benefits for the month of November and may not be recertified unless the client goes to the CSE office and agrees to cooperate. **

II. PROCEDURES

B-1251-FITAP - PR NONCOOPERATION

Take the following action upon receipt of the LAIN21P advising of noncooperation:

- * Document the case with a Case Note including the date of the LAIN21P, name of the Absent Parent, date of noncooperation, and the reason provided by CSE. **
- * If the case is active, send ** Advance Notice of Adverse Action (automated or manual) to the client within 10 days of receipt of the LAIN21P to notify the client that the cash assistance case will be closed for failure to cooperate with CSE and to advise the client of the mandatory period of ineligibility. The case record must be documented with the type of notification (automated or manual) sent to the client.
 - If the family is not work-eligible, the case must remain closed for at least one month and the client complies with this requirement, whichever is later.
 - If the family is work-eligible, impose a STEP sanction with the appropriate occurrence and reason. The case must remain closed for the duration of the sanction period and until the client complies with this requirement, whichever is later.
 - Close the case upon expiration of the 13-day notice unless the client ends his failure to comply prior to that time.
- If the case is closed or pending closure (Active Closure) for another reason upon receipt of the LAIN21P, send Advance Notice of Adverse Action (manual) to the client within 10 days to notify the client of the CSE non-compliance, including the period of ineligibility based on the STEP sanction occurrence for the work-eligible family or one month period for the not work-eligible family, and the requirement to comply with Child Support Enforcement to regain eligibility for benefits.
 - If the reason for pending closure is resolved and the case is returned to an active status, the appropriate STEP sanction for the work-eligible family or the one month case closure for the not work-eligible family is imposed on LAMI and is effective the month following

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the expiration of the Advance Notice of Adverse Action for the CSE non-compliance unless the client ends his failure to comply prior to that time.

Take the following action upon receipt of the LAIN21P advising of cooperation:

- If the client ends his failure to comply prior to expiration of the 13-day adverse action, remove the CSE sanction, disposition the case and send a concurrent notice.
- If the LAIN21P is received after case closure indicating the client *** cooperated * prior to case closure, ** reopen the case, remove the CSE sanction, disposition the case and send a concurrent notice. Corrective payments must be made to the client, if appropriate.
- * Document the case with a Case Note including the date of the LAIN21P, name of the Absent Parent, and date of cooperation. **

B-1252-FITAP - PR FAILURE TO SUBMIT CHILD SUPPORT PAYMENTS TO CSE

The Fraud and Recovery Section will notify the worker via FR 64 if the client fails to:

- Sign a repayment agreement (S6), or
- Comply with a repayment agreement (S7).

Upon receipt of form FR 64, send the [OFS 19S](#) and close the case as soon as possible after expiration of the notice of adverse action, unless the client ends his failure to comply prior to that time.

- If the family is not work-eligible, the case must remain closed for at least one month and the client complies with this requirement, whichever is later.
- If the family is work-eligible, impose a STEP sanction with the appropriate occurrence and reason. The case must remain closed for the duration of the sanction period and until the client complies with this requirement, whichever is later.

B-1253-FITAP - PR REAPPLICATION FOLLOWING CASE CLOSURE ***

Advise the client of this requirement at the time of the application interview and give the client form [OFS 53](#), * Requirement ** to Cooperate with CSE. When the client appears at the CSE office, the client will meet with a CSE Specialist who will complete the bottom section of the form indicating whether the client has agreed to cooperate. The completed form will be given to the client at the conclusion of the CSE meeting. The client will be required to return the form to the local DCFS office.

Allow the client 10 days to go to the CSE office and return the form to the local DCFS office.

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If the applicant reports difficulty in obtaining a completed [OFS 53](#) from CSE, the worker must assist the household in obtaining the required verification of cooperation.

Upon receipt of the completed form indicating that the client has agreed to cooperate, the case may be certified if otherwise eligible. Reject the application if the completed form indicates that the client has not agreed to cooperate or if the form is not received by the 10th day. * The completed form is not required if the client's cooperation has been verified by a CSE Specialist (i.e. verbally, email, etc.) In these situations, the case must be well documented. **

III. FORMS AND INSTRUCTIONS

[OFS 019S Form/Instructions Notice of Action Taken Because of Failure to Sign Agreement](#)

[OFS 053 Form/Instructions Requirement to Cooperate with CSE](#)

IV. REFERENCES

[Title IV of the Social Security Act, Sec. 408](#)

[LAC 67:III.1239](#)